RAMBAM'S INTRODUCTION TO THE MISHNAH

Why Is Avot in the Order of Damages?

Rambam's Intro to the Mishnah, Part 5

Source: The Rambam's Introduction to the Commentary on the Mishnah (Rav Shilat's edition), the structure of the Mishnah, concluded

Shiur: Part 5 of the series on the Rambam's Introduction to the Mishnah, given by Dayan Daniel Kada on Zoom, Tuesday 10 June 2025 (after Shavuot)

These notes are based on the Sofer.ai transcript of the recording.

Recap

- **The Oral Torah:** Moshe received it, taught it **at least four times**, and reviewed it before he died. Each generation's **Sages** (not prophets: prophecy gives no interpretive authority) derived new laws, sometimes differently.
- **Rabbi Yehudah HaNasi**, in the **third century CE**, about 1,700 years ago, gathered it all into the **Mishnah**, in **five categories**: from Moshe with a scriptural source; from Moshe without (*halachah leMoshe miSinai*); **derived** (disputable, more so over time); **fences** (poultry and milk, by majority); **takkanot** (e.g. **prozbul**, so people can lend).
- **The structure** (two weeks ago; "to the best of my knowledge the Rambam is **the only one** who gives a reason for every tractate's place"): Zera'im with Berachot first; **Mo'ed**, "a **meeting**," for the festivals are meeting times with Hashem, and **Shabbat too** (**מועדי**); Nashim from Yevamot to Kiddushin; Nezikin, where **Bava Kamma** first fixes the hazards in society, **Bava Metzia** covers relationships the Torah addresses (guardians, disputed articles), **Bava Batra** those it largely doesn't (land). Then Sanhedrin, Makkot… **up to Avot.**

Part 1: Why Avot Is Here

We've just finished six weeks of Pirkei Avot, "but its messages are **timeless**." This is exactly the kind of opening where the Rambam loves to **digress into ethics**. **Why put ethics in an order about torts and damages?**

Reason 1: so we accept the Sanhedrin

להודיעך אמיתת הקבלה, שהיא אמת, שקבלוה רבים מרבים.

To show that **the tradition is true**, received by many from many.

So Avot opens with the chain: **משה קבל תורה מסיני ומסרה ליהושע, ויהושע לזקנים, וזקנים לנביאים, ונביאים מסרוה לאנשי כנסת הגדולה**, then the Sages by name, generation after generation. "Look in Tanach and you'll see the link." The **Great Assembly** included **Daniel** and **Ezra**; **Shimon HaTzaddik** was its last member.

Why here? The previous tractates are all **the Sanhedrin's**: it administers Bava Kamma, Metzia and Batra, **lashes** (Makkot), **oaths** (Shevuot), **testimony** (Eduyot), **capital cases for idolatry**. **Where does it get that authority?** Avot answers: **an unbroken chain back to Moshe**.

> **יפתח** .Each generation's Sanhedrin is like the Sages of Moshe's time **שהוא בדורו כמו הם בדורותיהם.** the leaders of each generation are, for that generation, like Moshe and Shmuel in: **בדורו כשמואל בדורו** "?theirs. "Otherwise, where would you stop

ובזה יש מוסר לבני אדם, שלא יאמרו: משפט פלוני נקבל, ובתקנת פלוני נאמין? אין הדבר כן, כי המשפט אינו לפלוני השופט, אלא לה׳ אשר צונו בו.

Judgment doesn't belong to so-and-so the judge. It belongs to Hashem, who commanded it.

"You may think: *I'd have accepted Moshe's Sanhedrin, Yehoshua's, maybe Shmuel's. But our rabbis are the same as us.* **No.** They have an unbroken tradition."

Which authority, and when?

(The Rabbi gave a whole series on rabbinic authority today a few years ago.)

For the Rambam, this binding authority **ended with the Talmud**, about **250 years after the Mishnah, around 500 CE**. It belongs to **the Sanhedrin**.

A thought experiment. "If we had a Sanhedrin today of the **71** ***gedolei hador*** (whether that's possible is another discussion) and it enacted something, it would bind us, and ignoring it would violate **לא תסור**. One I've always thought of: **if you're keeping two days of Yom Tov in Israel, you should have to wear a tie.** Everyone around you is working; it's so easy to jump on a bus, take out your phone. Make a takkanah!"

But if one Sage, or three, or seventy, or a letter signed by a hundred rabbis, says something: "It's important to listen and see if there's something we need to take on. **But if other rabbis tell you otherwise and you don't, that's fine. That's not *lo tasur*.**" "That's the Rambam. Others disagreed."

Today's batei din have very limited halachic power: no **fines and penalties** (*dinei kenasot*); they can **arbitrate**, do **conversions**, **divorces**, **marriages**. Much of what the Sanhedrin did requires **semichah**, a direct chain of ordination.

Reason 2: so judges behave

לומר בזה המסכתא מוסרי כל חכם מחכמי האומה.

To record the ethics of every Sage of the nation, so we learn from them.

That's for everyone, but **judges need it most**:

> **עמי הארץ, אם לא יהיו בעלי מוסר, לא יזיקו לציבור, אלא יזיקו לעצמן בלבד. והשופט, אם לא יהיה בעל מוסר וחינוך, יאבד עצמו ויאבד בני אדם כולם.**

An ordinary person without good character **harms only himself**. A judge without it **destroys himself and everyone.**

"How can you administer capital punishment or lashes, or judge between people, **when you're not living up to the highest standards?** Pirkei Avot gives the highest standards."

What a judge must have at his fingertips (all from Avot)

	The balance
הוו מתונים בדין	**Be deliberate.** Don't rush; you can be tricked or miss things
…but no עינוי הדין	**Don't delay a clear case.** "You have the answer. Give it. **Cut to the chase.**"
Witnesses	Be **precise** with them, and don't phrase questions so they **sense the answer you want** and lie to supply it
Litigants	**Don't teach them what to say.** ("The halachic status of **lawyers**: a talk for another time")
Dignity	**No light-headedness** with ordinary people, lest he be **demeaned**
…but not aloof	Don't **hide** from people. The Sanhedrin are **עיני העדה**, the eyes of the community: "**not the leader in the ivory tower.**"
No luxury	Don't pursue leisure and pleasure, lest desire **pull him from judging** (Avot ch. 6)
Don't seek cases	**אל תהי חושך עצמך מן הדין**: someone always eager to be dayan invites suspicion of getting something on the side
Compromise	**Always try for *pesharah*.** Never ruling, always compromising: "**that's the best**." Only if that fails, be firm and to the point
Patience	Hear people out, even when long-winded, until they're clearly off-topic

The Sephardi way. "In the Ashkenazi world the **rosh yeshivah** is the highest level, far above a community rabbi. **For us, all our greatest Sages were always community rabbis**, because the greatest *psak* and wisdom come from **living with the people and hearing them**. But you can't be **one** of them either: you have to keep that authority."

"Like an expert doctor"

The Rambam, a physician, "always likes to compare things to medicine":

Doctor	Judge
If **food and drink** can heal, **no medicine**. ("Nowadays: any problem, *take this pill*. **That's not a good doctor.** A good doctor first tries changing your diet")	**Compromise**
If not, **mild remedies** close to food (sweet potions)	**A ruling given with mercy and compassion**
If that fails, **the strongest medicines** (*scammony* and other Arabic-named drugs; the class suggested "antibiotics")	**Be firm and sharp**

"I once saw someone I really respect, the kindest person, the best *middot*, behaving **so sharp, so strong, so difficult**, because the case had dragged on and **nobody would compromise**. However kind you are, if

compromise doesn't work, you're **strong**."

Last: no pursuit of **wealth and display**: **מלך במשפט יעמיד ארץ**. The Gemara: **if the dayan is like a king, who needs nothing from anyone**, let him judge; **if he needs from others, he shouldn't**.

So Avot comes after Sanhedrin: it holds the ethics every judge needs.

And Horayot last

הוריות: no **mistaken rulings** of the Sanhedrin or beit din. **מי שיש לו טבע בשר ודם אי אפשר שלא ישגה**: no human can avoid all error. **Last**, because hopefully we won't need it. **Nezikin: eight tractates**.

Part 2: Order 5, Kodashim (11 tractates)

#	Tractate	Why here
1	**Zevachim**	**Animal** sacrifices: **Vayikra ch. 1**
2	**Menachot**	**Flour** offerings: **Vayikra ch. 2**
3	**Chullin**	**Ordinary meat** for your own table. Re'eh: after **"bring your offerings to the place He chooses"** comes **רק בכל אות נפשך תזבח ואכלת בשר**. Shechitah, which parts may be eaten
4	**Bechorot**	**Firstborns**, human (**pidyon haben**) and animal. Next in that passage: **לא תוכל לאכול בשעריך... ובכרת בקרך וצאנך**
5	**Arachin**	**Valuations**: consecrating **a person's value** ("I pledge my wife's value, my son's") at the Torah's fixed rates by sex and age. Not intrinsic holiness: **financial**
6	**Temurah**	**Transferring** holiness from one animal to another
7	**Keritot**	**Why karet, in Sacrifices?** Because **whatever carries karet when deliberate carries a *chatat* (sin offering) when inadvertent** (e.g. Shabbat)
8	**Me'ilah**	The **lower level**: what deliberately carries **lashes** carries an **asham me'ilah** inadvertently
9	**Tamid**	**No laws**: a **description** of the daily offering, so near the end
10	**Middot**	**No laws**: the **measurements of the Temple**, so that "one day, when it's rebuilt, we'll have the exact details"
11	**Kinnim**	Very complicated: **bird offerings that got mixed up**. It's **rare**, so last

The shape: 1–4 concern **intrinsically holy** bodies; 5–6 **financial** holiness; 7–8 the **sin and guilt** offerings; 9–11 description and rare cases.

Pronunciation: "Many tractates' names are completely **mispronounced** in the yeshivah world. It's not ***Arochin***; it's **ערכין**, ***Arachin***. There's no tractate called ***Kreisus***; it's **כריתות**, ***Keritot***."

Keeping a list. On inadvertent karet sins, one posek wrote that since we can't bring a *chatat* today, **you should write each one down**, so that when the Temple is rebuilt you'll bring a *chatat* for each. "This was written. Literally."

Part 3: Order 6, Taharot (12 tractates)

#	Tractate	Why here
1	**Kelim**	**First define what a *kli* (utensil) is**: only a utensil or a person can become impure
2	**Ohalot**	**The dead body**, the most severe impurity
3	**Nega'im**	**Tzara'at**, next most severe, and the only other impurity transmitted **by a tent**
4	**Parah**	The **red heifer**: purifying from the dead body
5	**Taharot**	The **lesser** impurities (e.g. animal carcasses), which give the whole order its name
6	**Mikva'ot**	Purifying from them **in the mikveh**
7	**Niddah**	Severe, but applies to **one gender only**, so after the general ones
8	**Machshirin**	What makes food **susceptible** to impurity: contact with **liquid** (Shemini)
9	**Zavim**	A man with a persistent emission: one gender
10	**Tevul Yom**	Also one gender
11	**Yadayim**	Impurity of **the hands** only: a single body part
12	**Uktzin**	**Fruit stems**: does a stem share its fruit's impurity? **Rare** and with **no verse**, so last

The leper and the dead

What separates humans from animals is **the power of speech**, our consciousness expressed in words. One who **destroys his faculty of speech** (tzara'at comes from **lashon hara**) is, **as a human, dead**, though alive, breathing, eating and drinking. So the *metzora* sits **alone outside the camp seven days**, **tears his clothes**, **lets his hair grow**: **he sits shivah for himself**, mourning the identity he lost until he regains it.

The totals

61 tractates, 523 chapters. "Only the Rambam could do something like this, **before you could put it into AI or Google**." Why? "**Before we go into the detail, I need to give you a framework of the whole Mishnah.** And how beautiful it is."

Part 4: From Mishnah to Talmud

The Tosefta and other baraitot

Rebbi wrote **as concisely and precisely as possible**, for memory and transmission. But **he wrote for people like himself**, and **some found it hard**.

Work	By	Purpose
Tosefta	**Rabbi Chiya**, Rebbi's student (early 4th century), and similarly **Rabbi Oshaya**	**Explain** the Mishnah and **add** what can be derived from it "only with hard work"
Sifra and Sifrei	**Rav** (late 3rd / early 4th century)	Also explanatory, adding material

But none of these baraitot come close to the Mishnah in **the precision of its words** and **its brevity**. **ראוה בנות ויאשרוה, מלכות ופילגשים ויהללוה**: when compared, **all praise the Mishnah**. "The Mishnah is **the head**."

Ravina and Rav Ashi

Each generation tried to understand the Mishnah better, **disagreed** on its explanation, and **added**:

עד שהגיע הזמן לרבינא ורב אשי, והם סוף חכמי התלמוד.

Until the time of **Ravina and Rav Ashi, the last Sages of the Talmud.**

By then (**around 500 CE**, about 250 years after the Mishnah) there was so much explanation and disagreement that **Rav Ashi** decided to do for everyone **after** Rebbi what **Rebbi** had done for everyone **from Moshe to himself**:

וקיבץ כל מאמרי האומרים, והתבוננות המתבוננים, והשמועות השומעים... וחיבר התלמוד.

He gathered all the sayings, reflections and teachings, **and composed the Talmud**.

The four contents of the Talmud

"**Whenever you learn Talmud, it has to be one of these four things.** Pay attention to this."

#	Purpose	What it covers
1	**Explanation** (*perush*)	Explaining the Mishnah; the **disputes** over how to explain it; each side's **proofs** for why its reading is better. "Often pages of the Gemara"
2	**Ruling** (*psak*)	Deciding (a) disputes **in** the Mishnah; (b) disputes **about how to explain** it; (c) disputes over **what to derive** from it, just as the Sages derived from the Torah
3	**New law**	Everything **derived** from the Mishnah, and the ***gezerot* and *takkanot** *added from 250 to 500 CE**, that weren't in Rebbi's day
4	***Derashot***	**aggadah**, "flowery" teachings that take a verse, **דרשות מתאימות לענין כל פרק ופרק**: **turn it on its head**, and draw out an idea or moral that **isn't its plain meaning at all**

Summary

1. **Avot sits in Nezikin for two reasons:** (1) its **unbroken chain** from Sinai shows why we must accept **each generation's Sanhedrin**: **judgment belongs to Hashem**, not "so-and-so" (for the Rambam, that binding authority **ended with the Talmud**); (2) **judges** above all need its ethics: deliberate but prompt,

dignified but approachable, unworldly, **compromise first**, "**like an expert doctor**." **Horayot** (judicial error) comes last.

2. **Kodashim:** animal and flour offerings → ordinary meat → firstborns (the order of **Re'eh**) → valuations and exchanges → **Keritot** (karet ↔ *chatat*) → Me'ilah → descriptive Tamid and Middot → rare Kinnim. It's ***Arachin*** and ***Keritot***.
3. **Taharot:** define a **utensil** → the dead (most severe) → **tzara'at**, "**sitting shivah for oneself**" → purification → lesser impurities → mikveh → one-gender impurities → hands → stems.
4. **61 tractates, 523 chapters.**
5. **Tosefta, Sifra, Sifrei** explain and add, but **the Mishnah is the head**. **Rav Ashi and Ravina** compiled **the Talmud**, whose four contents are **explanation, ruling, new law and *derashot***.

Coming Up

Next: the **Sages' *derashot* and aggadah**. "I'll show you some of the most bizarre ones; **you'll fall off your chair**." Why did the Sages teach in such strange ways? The Rambam gives "**a beautiful, very deep idea**" and develops it at length.

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